

As Defendants' motion is limited to one for summary judgment, it can only be granted if Defendants show that "the action has no merit," i.e. that every one of the causes of action is without merit. If a single cause of action is viable, the entire motion for summary judgment fails. (Code Civ. Proc. § 437c(c).); *All Towing Services LLC v. City of Orange* (2013) 220 Cal.App.4th 946, 954 ["Summary judgment is proper only if it disposes of the entire lawsuit."])

As Defendants have failed to meet their burden regarding the breach of contract cause of action, the Court need not analyze the common counts cause of action. Because there is a single viable cause of action, the motion for summary judgment must be denied in its entirety.

Conclusion

Defendants' Motion for Summary Judgment is **denied**.

4. 9:00 AM CASE NUMBER: C24-01590

CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO

*HEARING ON MOTION IN RE: PROTECTIVE ORDER

FILED BY: JURADO, ANTHONY

TENTATIVE RULING:

Notice to withdraw the motion was filed. Hearing vacated.

5. 9:00 AM CASE NUMBER: C24-01666

CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER

HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT

FILED BY: SAW, AMAN, MD

TENTATIVE RULING:

Before the Court is Defendants Aman Saw, M.D., John Muir Health, John Muir Cardiovascular Medical Group, Inc.'s (collectively "JMH Defendants") demurrer. The demurrer relates to Plaintiff Niraj Gandhi's ("Plaintiff" or "Gandhi") Third Amended Complaint for (1) Medical Negligence, (2) Fraud and Misrepresentation, and (3) Intentional Infliction of Emotional Distress.

JMH Defendants demurrer to Plaintiff's Third Amended Complaint in its entirety on the grounds that the Doe amendment adding them does not relate back to